

# Commissioned work and purchase agreement

*A reproduction kiosk in the Snap Station style, made to order*

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## Summary of the main terms

*Where this summary differs from the numbered sections or the Exhibits, the numbered sections and the Exhibits control.*

|                                                 |                                                                                                                          |
|-------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------|
| What I make                                     | 1 reproduction kiosk in the Snap Station style, to Exhibit A                                                             |
| Total price                                     | \$ _____ (Exhibit A)                                                                                                     |
| Payment 1, half at signature                    | \$ _____                                                                                                                 |
| Payment 2, half when I send the tracking number | \$ _____                                                                                                                 |
| Build period                                    | _____ weeks from the day payment 1 clears                                                                                |
| Agreed delivery date                            | _____ (Exhibit B)                                                                                                        |
| Outside date                                    | _____ (Exhibit B)                                                                                                        |
| Warranty                                        | 1 year on every part, new and second hand alike. 5 years on my own work                                                  |
| Technical support                               | 5 years by telephone, email and video call. See 15.11                                                                    |
| Parts and price                                 | The parts list is an estimate. A higher cost needs your written agreement first, and a saving comes back to you. See 4.8 |
| Governing law                                   | Massachusetts. No arbitration. See Section 22                                                                            |

- 1. You pay in 2 parts.** You pay half at the signature date, and you pay the other half at delivery. Exhibit B gives the amounts and the dates.
- 2. The last payment falls to the tracking number.** The second payment includes the delivery charge, and it is due when I ship the machine and send you the tracking number. On a hand delivery you pay me on the day I deliver.
- 3. The time to make the machine.** I make the machine in about \_\_\_\_\_ weeks from the day the first payment clears. If I run late, you get a weekly credit, but if I miss the outside date, I refund all the money you paid.
- 4. If you cancel.** You may cancel and get a full refund for \_\_\_\_\_ business days after the signature date, and that full refund continues for longer while I have ordered no material. After that you pay the actual cost, a ceiling applies at each step, and Section 6 gives more information.
- 5. 1 year on each part.** I warrant each part for 1 year from delivery. That year covers the new parts, the second hand parts and the second hand television. I warrant my own work on the structure and the wires for 5 years, and I give you technical support for 5 years by telephone, email and video call.
- 6. What this machine is.** The machine is a hand made reproduction of a 1999 store kiosk, and it carries reproduction artwork. This machine is not a Nintendo product. Nintendo and The Pokemon Company do not license it and have no connection to it. I make the machine for adults who use it at home.

## 1. Parties

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1.1 I am **Andrew J Fiore**, an individual who does business as anjafio in Massachusetts. My email is [hello@anjafio.com](mailto:hello@anjafio.com). My shop address is \_\_\_\_\_, and you send each cancellation notice to that address. My phone is \_\_\_\_\_.

1.2 You are \_\_\_\_\_, your address is \_\_\_\_\_, your email is \_\_\_\_\_ and your phone is \_\_\_\_\_.

1.3 The date of this agreement is \_\_\_\_\_.

1.4 This agreement covers 1 machine, and I make that machine to Exhibit A and to the drawings in Exhibit A1.

## 2. What I make

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2.1 I must make 1 reproduction kiosk to **Exhibit A**, and I must make that kiosk to the dated drawings and the reference photographs in **Exhibit A1**. The drawings give the dimensions, Exhibit A and Exhibit A1 are part of this agreement, and we both sign the 2 Exhibits.

2.2 Where Exhibit A or Exhibit A1 conflicts with other text in this agreement, Exhibit A and Exhibit A1 have precedence, and a signed change order has precedence over the 2 Exhibits.

2.3 **Dimensions.** The assembled machine is about \_\_\_\_ inches tall, \_\_\_\_ inches wide and \_\_\_\_ inches deep, and it weighs about \_\_\_\_ pounds. Exhibit A gives the guaranteed maximum dimensions for the assembled machine and for the machine in its crate, and I warrant that the machine stays within those dimensions.

Although I cut the parts to a tolerance of one eighth of an inch, the assembled height can change by up to one quarter of an inch. That change is normal for hand made cabinet work, and it is not a fault.

2.4 **Material variation.** The grain, the figure and the color change from board to board, and they change from any sample or photograph. Painted surfaces and powder coated surfaces change a small amount in sheen. Wood moves with heat and humidity, small checks and seasonal gaps can occur, and these are properties of the material.

2.5 **Paint color.** The code in Exhibit A sets the paint color, and only that code sets it. Your screen does not show you that color accurately.

2.6 I make each machine separately by hand, and small differences between this machine and any other machine are usual.

2.7 **The edges and the pedestal.** I do not fit T molding. I cut a 1/16 inch roundover on each exposed edge, which sits within 3 thousandths of an inch of the folded corner on the real machine. I cut each panel to its nominal size.

An MDF body gets glazing putty and then shellac or a filler primer on the edges, because a bare MDF edge takes up about 2 times the coating a face does and dries as a stripe you can see. A birch body gets a solid lip, so the roundover sits in solid wood and not across the plies. A steel body needs neither.

The 4 legs bolt to the base plate through flanges. The pedestal therefore comes apart, which is what lets the machine ship flat and lets a steel body go to the powder coater in pieces.

## 3. The artwork, and what this machine is not

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3.1 I must print reproduction artwork and attach it to the cabinet, and that artwork reproduces the panel designs of the 1999 store kiosk. Because the fixed package in 4.2 includes the artwork in its price, I make no other charge for the artwork, and you approve a printed proof at Approval 1.

3.2 You agree that I create this artwork as a reproduction, and no party licenses the artwork and no party authorizes it. The artwork reproduces characters, logos and panel designs that other companies own, and I hold no permission from any of those companies. You buy the machine knowing all of this.

3.3 I make no representation about the rights of other parties in the artwork, and I give no warranty of title for the artwork and no warranty against infringement. Instead, you have the remedies in Section 19.

3.4 **This machine is not a Nintendo product.** Nintendo, The Pokemon Company and other rights holders do not make or license the machine, they do not sponsor the machine, and they give it no approval. All third party names, marks and characters belong to their owners.

3.5 **Software.** Each device holds 3 kinds of software and nothing else: the software its manufacturer installed, the emulator applications that 3.6 covers, and any software you hold a license for. I install no game data, no disc images and no other copied software, and I give you a written statement of this fact at delivery.

3.6 **The tablet and the gaming PC.** This clause applies where Exhibit A shows the Android tablet behind the screen opening, and it applies where Exhibit A shows the gaming PC. Both devices get the same work from me. I set the device up before I ship the machine, and that setup is part of the price of the device in Exhibit A.

I create a new email account for the machine alone, such as [snapkiosk1@gmail.com](mailto:snapkiosk1@gmail.com), and I set the account permissions for kiosk use. On the gaming PC I also create the user account that the machine signs in with. I give you every account name and every password at delivery, and the accounts are then yours. You must change each password and set your own recovery email and recovery phone when you receive the machine. The account provider sets the terms for that account, not me.

I download the emulator applications, I configure them, and I pair them with every controller that Exhibit A includes. I tune the settings for the device in this machine, and I test that the emulators run before I pack it. Emulator applications are lawful software that anyone can download.

**I include no game files of any kind.** A game file is the copyrighted work of its publisher, and I have no right to copy one to your machine. You supply your own game files, and you are responsible for holding the rights to each one.

The 5 years of technical support in 15.11 cover this setup. I help you with the accounts, the emulator settings and the controllers over that period, in the same way I help you with the rest of the machine.

## 4. Price and tax

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4.1 Exhibit A gives the total price, and that total price covers (1) the parts you select, (2) the fixed included package, (3) the build fee, (4) the delivery and (5) any tax. Every line in Exhibit A gives a dollar amount as of the signature date, and I must give you each of those amounts on or before the signature date.

4.2 The **included package** is on every machine, and Exhibit A gives its price. That package covers the legs, the base plate in half inch steel, the controller arm and the reproduction artwork. It also covers the sticker printer in the kiosk, the fittings, the adhesive and the edge sealant. Additionally, the package covers the abrasives, the hardware and the anchor kit. I attach the reproduction artwork to the machine.

4.3 Exhibit A gives the **build fee** for this machine. The build fee covers my assembly, the setup, the quality checks and the support I give you.

4.4 **I collect Massachusetts sales tax on this sale.** Exhibit A gives the tax and the rate I applied, and my Massachusetts registration number is \_\_\_\_\_. I send that tax to the Massachusetts Department of Revenue. I give you a dated invoice that shows the tax as its own line.

4.5 If the delivery address sits outside Massachusetts, I must deliver the machine to that address, and the risk of loss passes to you at that address. I then charge no Massachusetts sales tax. However, you may owe use tax in your own state, you must pay that use tax, and the dated invoice I give you is what your state asks for.

4.6 I gave the prices in Exhibit A on \_\_\_\_\_, and those prices hold for \_\_\_\_ calendar days. After that period, I may give you a new price before I accept the order.

4.7 No amount in this agreement or in Exhibit A can stay blank, and I must not quote an amount after the signature date. Only a signed change order changes an amount after the signature date.

4.8 **The parts list is an estimate, and the price moves in both directions.** The parts list in Exhibit A is the list I expect to buy on the quote date, and it is an estimate. Suppliers change a model, stop a line, and move a price, so the exact parts can change while I make your machine.

I must not pass a higher cost to you unless you agree to it in writing first. I write to you with the part, the old price, the new price, the supplier and the reason. You then agree in writing, or you refuse. **If you refuse, I do not proceed with that change**, and Section 11 then gives you your alternatives, including a cash refund for that item or a cancellation where 11.4 allows one. You owe nothing extra while you decide.

The saving moves the same way. If I buy a part for less than its Exhibit A price, your total price drops by the full difference. I do not keep any part of a saving, and I show you the receipt.

Finally, my own labor and the fixed included package in 4.2 do not change under this clause. Only the price of a part changes, and only as this clause allows.

## 5. Payments

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5.1 You make 2 payments:

- **Half of the total price on the signature date.** I start the work and place the order only after this payment clears.
- **The other half plus delivery when I give you the tracking number.** I ship the machine, I send you the carrier and the tracking number, and this payment is then due. On a hand delivery there is no tracking number, so you pay me on the day I deliver the machine.

5.2 **Exhibit B** gives the amounts and the dates, and **Exhibit B** is part of this agreement. I apply each payment against the total price.

5.3 You must pay each invoice within \_\_\_\_ business days.

5.4 If you do not answer about the Approval 2 photographs in time, I may continue the work, and Section 8.5 then moves the schedule. No payment is due at Approval 2, so your silence there costs you no money and carries no interest.

5.5 A late payment carries interest of 1.5 percent a month, and I pay you the same rate on a late refund from the day the refund fell due.

If a payment runs more than 10 calendar days late, I stop the work, and the delivery date and the outside date each move by the number of days that the payment was late. The 2 dates also move by 14 calendar days or less, so I can put the work back in my schedule, and I write that allowance to you when the payment clears.

5.6 If you miss a payment date, I must write you a notice. The notice must give you \_\_\_\_ calendar days to cure the default. I stop the work or cancel this agreement only after that period.

5.7 I send each payment as an invoice from Stripe, and the invoice carries a link to a payment page that Stripe hosts. You may pay by ACH bank transfer, by wire, by certified check or by credit card. I add no surcharge for a card payment. I never see your card number or your bank details, because you type them on the page Stripe hosts and not on any page of mine.

5.8 If you find a problem with the machine or with an amount, you must write to me, and you must then give me the 30 days in 22.1. After that period, you may tell a bank or a card issuer to start a reversal of the payment, and you keep every right you have against a bank or a card issuer.

5.9 If a bank reverses a payment and the dispute ends in my favor, you owe that amount and you owe the bank fees for that reversal. You must pay (1) that amount and (2) those bank fees within 10 business days of my written statement.

If you do not pay in that period, I may recover the machine, and I must write you a notice 14 calendar days before I recover the machine. I credit every payment from you against the amount that you owe. If the dispute ends in your favor, you keep the title to the machine and the right to keep the machine.

## 6. Cancellation by you

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6.1 **3 day right.** You may cancel this agreement for any cause. You must tell me by midnight of the 3rd business day after the signature date, and you may send that notice by mail, by hand delivery or by email to the address in 1.1. You have this right no matter where you signed or how you signed.

When I get your notice, I must refund all the money within 7 business days. I must not apply a charge. Additionally, I give you 2 completed copies of the Notice of Cancellation with this agreement, and the 3 days start when you get those copies.

The federal Cooling Off Rule reaches a door to door sale, and it does not reach a sale I make at my own shop or entirely by mail or telephone (16 CFR 429.0(a)). I give you this right anyway, in the words that rule uses, and I am bound by it here whether or not the rule itself applies:

"You, the buyer, may cancel this transaction at any time prior to midnight of the third business day after the date of this transaction. See the attached notice of cancellation form for an explanation of this right."

6.2 **The free cancellation period.** The free cancellation period ends when 2 things have both happened: (1) \_\_\_\_\_ business days have passed since the signature date, and (2) I have placed my first order for materials or parts. The free cancellation period always runs at least that same number of business days.

During the free cancellation period you may cancel for any cause, and I must then refund all the money. I must write to you on the day when I place the first order. I must send each refund to the initial card or account within 7 business days. As an alternative, I may post a credit within 1 payment cycle.

6.3 After the free cancellation period you must pay a cancellation charge. The cancellation charge is the total of (a), (b) and (c):

- (a) the documented cost of the materials and parts for the machine. This cost applies only to a part that I cannot cancel, send back or use on a different machine. I must try to cancel, send back and use these parts again, and I must give you the invoices. I must offer these parts to you, and I must send a part to you at your cost if you ask for it.

I must not charge for a part that I ordered before the free cancellation period closed. However, I may charge for that part if you asked for the order in a written notice;

- (b) the documented shop hours that I spent, at the shop rate in Exhibit A. The charge in this paragraph can never be more than the build fee in Exhibit A;
- (c) a handling charge of \$\_\_\_\_\_.

When I get your written cancellation, the step that the work reached on that day limits the charge:

| Step reached                                | Maximum charge                              |
|---------------------------------------------|---------------------------------------------|
| I ordered the parts and did not cut a panel | 30 percent of the parts and build subtotal. |
| I cut the panels or started the assembly    | 50 percent.                                 |
| I applied the finish or the artwork         | 75 percent.                                 |
| I completed the machine                     | 100 percent.                                |

I must refund the full cost of the delivery, the freight, the crate, the boxes, the setup labor and the tax. This refund applies at each step and in all conditions.

6.4 If you paid more than the cancellation charge, I must refund the difference within 7 business days. If the cancellation charge is more than your payments, you must pay the difference. You must pay within 10 business days after I send a written statement, and that statement must show the step, the documented costs, the hours and how I calculate the charge. The unpaid difference carries interest at 1.5 percent a month.

If I have no other way to collect an amount that this section makes due, I may use a collection agency, a lawyer or a court, and you pay the reasonable costs of that action, to the limit that a court allows. The same rule runs the other way, and I pay your reasonable costs if you must collect from me.

6.5 I keep the machine and all the parts for the machine. I may complete the machine or stop at the step that the work reached.

**6.6 Cancellation after I complete the machine.** I must offer the machine for sale at a commercially reasonable price for 90 calendar days, and I must give you each sale advertisement. Before that sale you may pay the balance and take delivery of the machine.

If I sell the machine, I must refund all the money that you paid, less 3 amounts: (1) the shortfall against your price, (2) the documented cost to remove each item that is only for you, and (3) the reasonable documented resale costs. If I do not sell the machine in 90 days, I keep the machine and 6.3 applies.

6.7 6.3(a) includes second hand parts for the machine at the documented cost to buy them. I must give you the receipt for each second hand part, and I must offer these parts to you. If you refuse the parts, I keep them. I must then try to use the parts or sell them, and I must refund all the money that I collect within 12 months.

## 7. Cancellation by me

7.1 I may cancel this agreement in 5 conditions. First, you did not pay, and the amount stays unpaid after the cure period in 5.6. Second, you did not give Approval 1 in the 45 calendar days after the first payment cleared. Third, you cause a delay of more than the 30 day cap in 8.5. Fourth, I cannot make the machine to the specification, or the specification is dangerous. Fifth, Section 19 applies.

7.2 I may cancel for nonpayment, for your failure to give Approval 1, or for a delay more than the 8.5 cap. For these 3 grounds, the charge in 6.3 applies at the step reached. For all other grounds, I refund all of the money within 7 business days, and I keep the machine and the parts. If I cannot make the machine safely to the specification, I must tell you the cause in a written notice.

## 8. Time

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8.1 The build period is about \_\_\_\_ **weeks** from the day your first payment clears. For example, if your first payment clears on March 3 and the build period is 14 weeks, the agreed delivery date is June 9.

8.2 **Exhibit B states the agreed delivery date, and you and I specifically agree to that date.** I need more than 4 weeks to make this machine.

8.3 **The outside date** is in Exhibit B, and it is the agreed delivery date plus \_\_\_\_ weeks. If I cannot ship the machine by that date, you may cancel, and you then get back **all of the money you paid** plus any accrued credit, with no charge, at whatever stage the work has reached. I keep the machine and the parts.

The outside date is my deadline to have a machine ready to ship. However, the outside date is not a delivery date, and it does not include the carrier time. The outside date extends by 1 day for each day of delay under 8.5 and for each day of delay under Section 9, and it also extends for the time between my notice under 11.2 and your answer, and for the time I lose repairing transit damage.

8.4 **Late delivery.** If I cannot keep the agreed date, I must tell you in writing, and I must send that notice as soon as I know and before the agreed date passes, and the notice must give you a new definite date. You may accept the new date, or you may cancel and get back all of the money you paid.

You also get a credit for each full week after the agreed date that I cannot ship the machine. The credit is 1 percent of the parts and build subtotal for each of those weeks, and it stops at 5 percent, and I apply it at delivery or pay it to you on cancellation.

8.5 **Delay that you cause.** If I cannot carry on with the work because I am waiting on an approval, a decision or a payment, both dates extend by 1 day for each day that I actually waited and actually could not work. The count starts only on the day I sent you a written reminder. The extension stops at 30 calendar days. After 30 calendar days, I may cancel under Section 7.

## 9. Events that neither of us controls

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9.1 Neither of us is in breach for a delay caused by fire, flood, storm, strike, carrier failure or government action. Additionally, a delay caused by a supplier that stops making a part is not a breach, and neither is a delay caused by my serious illness, injury, hospitalization, family emergency or death. I must tell you immediately, and I must keep you informed after that.

9.2 If a delay from one of these events runs past 60 calendar days, either of us may cancel. You then get back all of the money you paid, less the documented cost, and I work that cost out by the method in 6.3. If the outside date has already passed, 8.3 applies instead and your refund is full.

9.3 If I die or cannot finish the machine, the person who handles my affairs must tell you within 30 calendar days. That person must then arrange for someone to finish the machine, or that person must cancel. Nothing in this agreement makes my estate liable to finish the machine.

## 10. Approvals

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10.1 I stop and wait for your written approval at 3 points:

- **Approval 1.** The last build sheet and the printed artwork proof. I cut no material before this approval.
- **Approval 2.** The photographs of the assembled cabinet, taken before I apply the finish. No payment is due at this approval.
- **Approval 3.** The photographs of the finished machine, taken before I pack it.

10.2 You have **5 business days** to answer each approval. If you do not answer, I send a second written reminder by email and by text or telephone, and the 5 business days then start again. If you do not answer that second reminder, your approval counts as given, and I carry on and move the schedule under 8.5. Your silence is never a ground for me to cancel this agreement.

10.3 When you approve the build sheet and the proof, you accept the dimensions, the layout, the materials, the color code and the artwork as shown. However, you do not accept that the finished paint will match the color on your screen.

10.4 An approval that counts as given for silence only lets me carry on and move the schedule. It does not give up your right to a machine that conforms to Exhibits A and A1.

10.5 Approval 1 includes 2 sets of build sheet changes at no charge. Each set after those 2 costs \$\_\_\_\_, and you pay before I start that work.

10.6 If you have not given Approval 1 within 45 calendar days after your first payment clears, either of us may cancel, and Section 6 then applies at the stage the work has reached.

## 11. Parts I cannot always get

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11.1 I must not accept an order that includes a second hand console, a second hand screen or a second hand controller. I may accept that kind of order in only 2 conditions: I already hold that part on the day of your order, or Exhibit B gives a longer agreed delivery date and names the part that date is for.

11.2 Some options are second hand and I cannot always get them, mainly the Nintendo 64 console itself, the Hori controller and the 15 inch cased television. The supply and the price of these parts both move.

Sometimes I can get 1 of those parts only at more than 25 percent above its Exhibit A price, and sometimes I cannot get it at all. In either of those 2 conditions I must tell you within **7 calendar days** after I learn of it, and I must propose a replacement at no increase in the price. If the replacement costs me less, the price drops by the full difference.

Whether a replacement is equal or better is judged against your reason for choosing the part, and that reason includes the originality and the brand. However, matching specifications alone are not enough.

11.3 You have **7 calendar days** to accept or refuse the replacement. You must accept a replacement that is genuinely equal or better for the reason you chose the part. A refusal must be in writing and must say why.

11.4 If you and I have not agreed within **30 calendar days** after my notice under 11.2, you choose one of these 3 alternatives:

- You drop that item. I pay you a cash refund of its Exhibit A price within 7 business days, and I carry on with the work.
- You accept a replacement.

- You cancel the whole order, and I return all of the money you paid. You may choose this alternative only when the item is the console, the screen or the body material.

11.5 I must not replace any part before I ask you, and Section 9 does not release me from this section.

## 12. Delivery

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12.1 Exhibit A gives the delivery method that you and I select, and Exhibit A also gives the fixed price of that method.

**Flat packed in 6 parcel boxes.** I send the machine in parts by a parcel carrier, and you assemble it in about 2 hours with a screwdriver, working from the instructions and all of the hardware that I pack in the boxes.

**Assembled in a crate on a freight truck.** I send the machine assembled on a pallet, and a freight truck with a liftgate transports the crate. **Curbside only.** The driver puts the crate at the curb or at the end of the driveway and then leaves, and the driver does not move the crate into the house, up the steps, or around the house.

**Hand delivered and set up.** I deliver the machine myself and put it in the room you choose, and I then show you how the machine works. I deliver by hand within 300 miles. For a longer distance, I write a quotation, and you and I both sign that quotation.

12.2 **Your duties on curbside freight.** You must have 2 people, or equipment, waiting at the curb. The crate weighs about 175 pounds plus the crate itself, and it is far too heavy for a single person. When the carrier calls to set the delivery window, you must answer the telephone. You must also make sure that the road and the approach take a full size truck with a liftgate.

If the truck cannot reach the address safely, the delivery fails, and you must then collect the machine from the carrier's terminal.

You pay the carrier's charges for a second delivery, for delay time or for storage in 2 cases only: you missed a confirmed delivery window, or you described the address or the approach inaccurately. The limit on that payment is \$250, and you pay it only after you get the carrier's invoice. I pay each charge that the carrier or I cause.

12.3 Exhibit A gives the maximum dimensions of the assembled machine and of the crate. Before you order the machine, you must compare those dimensions against your doorways, your stairs and your room. You are responsible for each measurement you give me, and each measurement must be correct.

12.4 For each method, you or another person at the address signs a delivery and acceptance sheet, and I photograph the machine at the delivery. For freight and for parcel, the carrier's signed record is that sheet.

12.5 On a hand delivery, you must keep the path open and lit, and before the delivery you must tell me about the stairs, the thresholds, the turns and the floor surfaces. I must not move your furniture and I must not remove a door. Only I and the people I bring with me move the machine. I ask you to stay clear of the machine, and you have no obligation to help.

12.6 At your address, you sign only the completion sheet. You and I sign the orders, the change orders and the addenda online or at the shop.

12.7 **The documents I deliver with the machine.** I give you a General Certificate of Conformity for the lead in the paint, and I give you the TSCA Title VI document for each composite wood part. I give you the technical data sheet for the paint. I also give you an operation manual, a wire diagram and a parts list with the sources, and I give you the anchor kit instructions and the fastener ratings. I give you the original receipt for every new part that I bought commercially, which is what a manufacturer asks for when you open a return authorization. Where Exhibit A shows the tablet, I also give you the account name and the password for the email account that 3.6 covers.

I give you the electrical test values from 18.3. I give you the media type, the price and the source for the sticker printer media, and I give you full resolution photographs of the finished machine. Finally, I give you a written statement of all software and firmware on the machine, and that statement must show that each software item and each firmware item carries a license.

### 13. Changes after signature

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13.1 You may propose a change before I make the affected component. A change becomes part of this agreement after each of us confirms it in writing, and an email that states the scope, the price and the new date is enough for that confirmation.

13.2 A change order states the cost of the added parts and the documented cost of each part that I discard, and it gives the labor at the Exhibit A shop rate. It gives an administrative charge of \$\_\_\_\_, and the first change order carries no administrative charge. It gives a new delivery date, and that date counts from the day you and I sign the change order.

If a change reduces the cost, that change reduces the price by the full amount saved. You pay the full amount of a change order on the day you and I sign it. I start the work after that payment.

13.3 After I make a component, I may refuse a change to that component. As an alternative, I may give you a price for the change as a change order that includes the cost of the parts I discard.

13.4 After the delivery, I must make 2 visits or send 2 replacement parts for each fault you report. However, I may come to the address and find no fault that Section 15 covers, and you then pay a call out charge of \$\_\_\_\_ and mileage at the federal rate.

### 14. Title, risk and arrival

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14.1 The title to the finished machine passes to you when you pay the full price.

14.2 The freight terms and the parcel terms are **FOB destination**. The Uniform Commercial Code defines that term, and under it I keep the **risk of loss** for the whole journey until the machine arrives at your address. On a hand delivery the risk of loss passes to you when I finish the setup, and if you refuse the delivery or cannot accept it, Section 16 controls the risk of loss.

14.3 I must declare the full invoice value to the freight carrier, and I must pay for that coverage.

14.4 If the machine is lost in transit or damaged in transit, you have this remedy: I must repair the machine or make a replacement, and that is the whole of my obligation. I must give you a new definite date within 14 calendar days after the carrier confirms the loss. If that new date is more than 8 weeks after the delivery date we first agreed on, you may cancel this agreement and take back all of the money that you paid.

You must help with the claim. You must record the damage, give me photographs, keep the crate and the protective material, and sign the claim forms that I send you.

14.5 **Security for your payments.** As you pay, the title to the materials and the parts for the build passes to you, and the title to the work in progress for the build passes to you as well. I hold these items for you and mark them with the build number.

14.6 These 4 conditions give you a remedy: (1) I die, (2) I cannot work, (3) I become insolvent, and (4) I miss the outside date. In each of those conditions, you may take possession of every item that I bought or made for the build.

You pay no more money for those items. Or you may take a full refund instead.

**14.7 Freight damage that you can see.** Before you sign the delivery receipt, you must examine the crate. If the crate has damage, you must **write down which parts have damage** on the receipt before you sign it. The carriers reject the word "damaged" on its own, and they reject the phrase "subject to inspection".

You must photograph everything, and you must photograph the crate on the truck if you can. Then you must **accept the shipment**. If you refuse the shipment, the carrier can charge you the freight in both directions, and the claim also becomes harder.

**14.8 Damage that you find after you open the crate.** You must tell me within **5 business days**, you must give me photographs, and you must keep all of the protective material. You must not assemble or modify an item that is subject to a claim, because that work voids the freight claim.

**14.9 Other faults.** You have **30 calendar days** after the delivery to give me a written notice of a fault. That fault can be a build fault, a fit problem or a function that does not work. I must then correct it. On the flat packed method, the 30 days start when you finish the assembly, and on that method the last day of the period is 90 days after the delivery.

If you miss the deadline, you keep your rights for a fault that you could not reasonably find in that period. You also keep every right that Massachusetts law gives you. This agreement does not cover a problem that you cause when you assemble the machine in an incorrect sequence or with incorrect tools.

## **15. Warranty**

---

**15.1 My own work.** I give a warranty of **5 years** on the joinery, the structure, the wires, the mounts, the assembly and the bond of the decals. I give a warranty of **1 year** on the bond of the finish. Each period starts on the day of delivery. This is a **Limited Warranty**, and it is not a full warranty.

The warranty covers you, and you may give the warranty once, to the first person who buys the machine from you, and the warranty then stays in effect for the remainder of its term.

**15.2 I cover each part, new and second hand, for 1 year from delivery.** This is my own obligation, and a warranty that a manufacturer gives does not change it.

**15.3 Remedies in 15.1 and 15.2.** I select the remedy. I must repair the fault, replace the part with an equal or better part, or refund the Exhibit A price of the part, and I must pay the freight, the crate and the travel in each direction.

If an on site repair is practical, and you are within \_\_\_\_ miles, I must do the repair at your location. If I cannot practicably send the machine, I must repair it on site or must supply and pay for the transport. A refund for the cabinet, the structure, the finish or any item with no price of its own is the parts and build subtotal.

**15.4 A second hand part that I cannot replace.** However, I do not promise to find a replacement for a second hand part. If I cannot get an equivalent part within 60 calendar days of your report, I must refund that part's Exhibit A price, and that refund ends my obligation for that part. Additionally, I must give you a record of the efforts that I made.

**15.5 A manufacturer warranty applies together with my year.** Exhibit A lists the make, the model, the warranty length and the date when the warranty expires, for each new part. Although Exhibit A states a length, the expiry date in Exhibit A is the correct end of the warranty, and the stated length is not.

I buy each new part in a normal commercial sale, and I deliver you the original receipt for every one of them, the sticker printer and the display included. You can then open a return authorization with that manufacturer yourself, and you do not need me to do it. If I can give a manufacturer warranty to you, I must give it at delivery. If I cannot

give it to you, I must keep it for your benefit, and I must file and manage the claims at no charge for my time whenever you would rather I did. I must file a claim within 10 business days of your report, and I must update you every 15 days.

You pay to send a defective part out. I pay to send it back. If I opened a part when I fitted it, that manufacturer warranty is void and Exhibit A says so, and I then cover that part myself for the full length of the warranty that my work made void.

3 conditions oblige me to give you an equal or better part, or to refund the Exhibit A price of the part: (1) a manufacturer refuses a valid claim, (2) I do not file a claim, and (3) a manufacturer stops production of the part.

**15.6 Second hand parts.** Exhibit A lists each second hand part with its make, its model, its year, its tested condition and its test date, and Exhibit A gives the year only where I know it. You initial those lines.

The photographs show the cosmetic condition of each second hand part, and I took these photographs before I installed the part. You accept the scuffs, the yellow color and the wear on these parts. The warranty does not cover the wear of a stick or a membrane, the batteries, or the slow loss of brightness in a picture tube. I rebuilt or recapped a second hand part only where Exhibit A says so. I make no promise about the service life that stays in a second hand part.

**15.7 I cover a fault in a second hand part that causes a risk of fire, smoke or shock. This cover has no time limit. No clause in this agreement excludes this cover.**

**15.8 Exclusions from 15.1.** The warranty in 15.1 does not cover cosmetic movement of the wood, and it does not cover checks and seasonal gaps that have no effect on the structure, the fit or the finish integrity. It does not cover variation in the grain or in the color. It does not cover loss of color in the graphics in direct sunlight. It does not cover damage that you cause after delivery.

The warranty in 15.1 does not cover work by any person other than me, and it does not cover use outdoors, in a moist room or in a garage. It does not cover liquid damage, and it does not cover commercial use. It does not cover damage from a fall of the machine, where you did not anchor the machine and that failure caused the damage.

I must show that the excluded cause caused the fault, and an exclusion applies only after I show it.

**15.9 Massachusetts law gives you implied warranties, and no clause in this agreement removes these warranties or makes them shorter.** I do not disclaim the implied warranty of merchantability, I do not disclaim the implied warranty of fitness for a particular purpose, and I do not limit your remedies for a breach of these 2 warranties.

The machine must do what a machine like this is supposed to do. The machine must suit the use that you described to me. **I sell no item in this sale as is.**

If a repair or a replacement does not correct a fault after a fair opportunity, the repair or replace limit stops, and you may then take a refund or use any other remedy at law. No clause here limits your rights if a person gets an injury.

**15.11 Technical support for 5 years.** For 5 years from the day of delivery, I answer your questions about the machine at no charge. I give this support by telephone, by email and by video call, and I do not give it at your address. I help you set the machine up, operate it, load the sticker printer, and find the cause of a fault. Where Exhibit A shows the tablet or the gaming PC, I also help you with the accounts, the emulator settings and the controller pairing that 3.6 covers. I answer you within 3 business days of your message. This support is my own separate promise, and it neither adds to nor reduces any warranty in this Section 15.

If a call shows a fault that 15.1 or 15.2 covers, the remedies in 15.3 apply and the support call costs you nothing. If a call shows a fault that no warranty covers, I still help you diagnose it at no charge, and you pay for any part and for any labor you then ask me to do.

15.10 The federal warranty rule at 16 CFR 701.3(a)(9) requires this notice, and I give it in the words of the rule:

This warranty gives you specific legal rights, and you may also have other rights which vary from State to State.

I place no limit on how long an implied warranty lasts, so the separate notice at 16 CFR 701.3(a)(7) about a duration limit has nothing to attach to here.

## 16. If you do not take delivery

---

16.1 When I complete the machine, I must write to you, and I must invoice the balance with that same notice. You may examine the machine at the shop by appointment before I crate it.

16.2 You must pay the balance within 14 calendar days of that notice, and in the same 14 days you must accept delivery or book a carrier window. Storage starts on day 15 at \$10 a day, and the storage charge has a cap of \$600. I invoice the storage each month. You must pay the storage before I release the machine.

16.3 During those 14 days I keep the machine insured for its full price, and I keep the risk of loss for the same 14 days. The risk of loss moves to you 30 calendar days after that notice.

16.4 If the storage runs for 90 calendar days and you do not take delivery, I may sell the machine, and I must write to you a minimum of 14 calendar days before I sell it. I subtract the sale costs and the storage charge from the proceeds, and I apply the remainder against the money that you owe. I pay you any money that stays after that, and you must pay any shortfall.

## 17. Safety

---

17.1 **Falls.** The machine is tall and narrow. It is about 52 inches tall, and it stands on 4 legs in a square about 7.3 inches across. **The machine can fall over if a person pushes it, pulls it, climbs on it, or leans against it. A machine that falls can kill a person.**

I build a steel base plate of half inch thickness into the machine as ballast, and the plate is a safety component. You must not remove the plate.

17.2 I supply an anchor kit with every machine, and the kit holds (1) 2 brackets, (2) a cable or a reinforced strap, (3) cabinet screws, and (4) wall fasteners. The fasteners fit wood studs, masonry and steel studs, and each fastener holds a minimum static pull of 200 pounds. Exhibit A gives the load limit of each fastener.

17.3 **You must anchor the machine to the wall before you use it.** You must follow the kit instructions. You must put the machine on a level hard floor, and you must not put it on carpet over a rough subfloor. You must not let a person climb on the machine, hang from it, or sit on it. You must keep small children away from the machine.

If no fastener in the kit fits your wall, tell me before the delivery. I then give you a floor anchor or a rear foot to keep the machine stable, at no cost.

17.4 If you did not anchor the machine, 15.1 does not cover damage from a fall. If you could not anchor the machine and you told me, 15.1 covers that damage.

17.5 You must send me a photograph of the anchored machine within 14 calendar days of the delivery. On a hand delivery I anchor the machine and photograph it myself, and you then sign the completion sheet to agree that I anchored the machine.

17.6 I attach a permanent warning label to the back of the cabinet, and I attach a data plate in the rear access panel. The data plate shows the build number, the build date and the warning about a fall. You must not remove, paint over or deface the label or the plate. When you ask, I replace an unreadable label at no cost.

## 18. The television and the electrical system

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*Sections 18.1 and 18.2 apply only when the build sheet includes a cased television.*

18.1 The 15 inch screen is a **second hand consumer television**. The make is \_\_\_\_\_, the model is \_\_\_\_\_, and the year is \_\_\_\_\_. I tested the television on \_\_\_\_\_, and it operated correctly. The television operates from a normal wall outlet.

Although the television is decades old, I examined its power supply for the components with a known failure in that model, and I have ☐ recapped it ☐ not recapped it. I attach a thermal cutoff and a fuse with a rate for the television. Before I crate the machine, I record a short video of the television in operation, and I send that video with the finished photographs.

I open the television, and I clean the inside of it. I clean the screen face and the inside of the front glass, and I remove the dust from the chassis. I then calibrate the picture. I set the geometry, the focus, the convergence and the gray scale. The video I send you shows the picture after this work. This work is part of the screen price in Exhibit A.

**I warrant that the television gives that image for 1 year from the delivery.** The warranty covers a picture shape or a brightness materially worse than the recorded image, and it covers a color in the incorrect position. The warranty does not cover a set that becomes dim slowly. If I cannot get a replacement set in equivalent condition within 60 calendar days, 15.4 applies.

**18.2 A television like this keeps dangerous electrical energy in it for days or weeks after you disconnect it. The charge can kill you, even when the television shows no sign of power.**

Do not open the rear panel. Do not remove any panel from the television. Do not try to repair the television. Only a qualified technician may service the television, and Section 15.7 applies to this set.

**A note on the work in 18.1.** I open the television and I clean it. I do that work with the training, the tools and the discharge equipment the work needs. **Do not read 18.1 as permission to open a television yourself.** The picture tube holds a high voltage charge and it holds a vacuum. An untrained person who opens a television can die from the charge, and can be injured by the glass. Leave this work to an expert.

18.3 I wire the machine with listed parts, and a listed part carries a safety certification such as UL. The machine has a fused inlet, a listed cord, listed power supplies, and a ground on all metal parts. Nothing inside the cabinet that carries wall power is meant for you to service. You must connect the machine to a grounded outlet, and you must not operate the machine from a damaged cord or from an adapter without a ground.

Before I crate the machine, I test the ground continuity, the insulation resistance and the leakage current, and I record the readings and send them with the machine. I warrant that the wires I installed meet NFPA 70, which Massachusetts adopts, and I warrant that all components with wall power are listed parts.

**18.4 The full machine is not a listed or certified electrical assembly.** The machine has no UL, ETL or equivalent certification. When I put independently listed devices into a single cabinet, the certification of each device does not carry over to the machine. Your local electrical inspector and your insurer make the decision about an unlisted

assembly where you live.

## 19. Intended user, permitted use, and rights holders

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19.1 I make this machine for adult collectors. **The machine is not a toy, and I do not make it or intend it for children 12 years of age or younger.** It is heavy, it operates from a wall outlet, and it can fall over. You must not let children use the machine.

19.2 You buy the machine for personal use. **Commercial use** means that a person charges money for use of the machine, and **Commercial use** also means that a person operates the machine in a business open to the public. A machine in a home office is not commercial use.

You must not operate the machine with coins, charge admission, or put the machine in a commercial venue or a public area. If you do, an inspector, a landlord or an insurer will probably require a safety label. The machine does not have that label, and you pay for it.

19.3 You must not use the name, the logo or the marks of a rights holder to advertise the machine as official or licensed, and you must not list or describe the machine as official or licensed. You must not post or list photographs that carry the name, the logo, the hashtag or the account handle of a rights holder. You must not tag a rights holder in a post about the machine.

19.4 If you sell the machine, give it away, or lend it for more than 30 days, you must first write to the recipient. You must write that the machine is an unlicensed reproduction and not a Nintendo product. You must then give the recipient a copy of Sections 17 and 18, the manual and the anchor kit, and you must keep the warning labels on the machine. You must also tell me within 14 calendar days where the machine went, and you have no liability for the acts of the next owner.

19.5 If a claim comes against me, you must reimburse my reasonable documented direct costs. You pay these costs only if your own acts are the sole cause of the claim. Those acts are how you used, modified, put, resold or described the machine after the delivery.

I must notify you within 10 calendar days, and you may take part in the defense. You do not reimburse costs that come from my own work, and your liability has a cap at the total price paid.

19.6 **If a rights holder objects before the delivery**, I must notify you within \_\_\_\_ calendar days. You then choose. I can deliver the machine at the same price, with the artwork removed or replaced with unbranded artwork, or you can cancel and take back all of the money you paid. After that, neither of us owes the other anything.

19.7 **If a rights holder objects after the delivery**, I must notify you within 7 calendar days. I may then offer replacement unbranded artwork or panels at my own cost, but I have no obligation to repurchase the machine. A delivered machine that matches Exhibit A is not defective after a rights holder objects. If I write to you to remove or cover the artwork, I pay the reasonable cost, and you must then let me remove or cover the artwork.

19.8 You do not buy an asset with a value that increases. I make no representation about the future value or the resale of the machine, and I make no representation that I will continue to make machines of this type or supply parts for them.

19.9 If a person gets an injury from the machine or near it, you must write to me within 30 calendar days. You must write within the same 30 calendar days if the machine or its area causes property damage. You must keep the machine as it is, you must change only what safety needs, and you must let me examine the machine before a change.

## 20. Limits on damages

---

20.1 For a breach of this agreement, my total liability to you has a limit. The limit is the greater of 2 amounts. Those amounts are the total price, and the amount that you actually paid. I am not liable for consequential damages, and you are not liable for them either. Consequential damages here means an indirect loss, a loss of profit, and a loss of use.

Some States do not allow the exclusion or limitation of incidental or consequential damages, so the above limitation or exclusion may not apply to you.

That is the exact wording that 16 CFR 701.3(a)(8) requires. Massachusetts is one of those states. Either way, 20.2 lists what the limit does not cover.

20.2 **20.1 does not apply to the items in this list, and nothing in this agreement limits them.** The list holds (1) an injury to a person, (2) damage to your property from my negligence or from my defective work, (3) your right to a refund of all the money that you paid, and (4) your reasonable cost to buy an equivalent machine elsewhere if I do not deliver this 1. The list also holds (5) remedies for a breach of an implied warranty, (6) anything that Massachusetts law does not let either of us limit, which includes any liability or remedy that Massachusetts General Laws Chapter 93A gives, (7) gross negligence, (8) willful misconduct, and (9) fraud.

20.3 This agreement gives each of us some judgments to make. Those judgments include (1) whether a replacement is equal or better, (2) whether a repair is practical, and (3) what a documented cost is. Whoever makes 1 of those judgments must be reasonable, and that person must act in good faith. You or I may then write and ask for the invoices, the records or the photographs behind it, and whoever made the judgment must give those documents within 5 business days. That person must charge only an amount that the documents show, and no more. If we disagree about a judgment, Section 22 resolves it. A disagreement never delays a refund of an amount that is not in dispute.

## 21. Photographs

---

21.1 At any step of the work, I may photograph the machine. I may also make videos of it while I work. I may use those images worldwide, and I do not pay you for that use. I may use them on my website, in social media and in a portfolio. I may also use them at exhibitions, in competitions, and in the press. If you write to me and tell me to stop, I must stop the use of those images in any new material, and I must do that within 30 calendar days.

21.2 Without your written consent, I must not publish your name, your address or any other data that identifies you.

21.3 The machine can be a gift, or it can be a surprise. If it is, you may check this box: ☐. I then keep all the images until this date: \_\_\_\_\_

21.4 I keep the copyright in my own design work, and I keep it in my photographs. At delivery, I must give you full resolution copies of the finished machine photographs. You may photograph the machine, publish it, and advertise it. Apart from 19.3, there is no limit on that right. A credit with my name is welcome, and you do not have to give one.

## 22. Dispute resolution

---

22.1 If we disagree about anything in this agreement, you must first write to me about it at the address in 1.1. After you write, we must work in good faith for 30 calendar days to resolve the dispute.

22.2 At any time, either of us may propose mediation. However, the other of us must consider that proposal in good faith. Although mediation is open to us, either of us may start a legal action without it first. If we mediate, we divide the cost of the mediator equally between us. During the mediation, the time limit to start a legal action stops. When the mediation ends, that time limit starts to run again.

22.3 Either of us may sue in the county where you live, in the county of delivery, or in \_\_\_\_\_ County, Massachusetts, and whoever makes the claim selects which of those counties to use. **Either of us may use small claims court at any time.** 22.1 and 22.2 do not apply to a small claims action.

**There is no arbitration in this agreement.** In a legal action, each of us pays our own legal costs. A statute can change that cost rule, and so can 6.4.

22.4 **Massachusetts consumer notice.** You may believe that I broke a Massachusetts law on consumer protection. Massachusetts General Laws Chapter 93A, Section 9 then needs a written demand from you first. That demand must tell me what happened, and it must tell me what it cost you. You must send the demand to the address in 1.1. You must send it a minimum of 30 calendar days before you sue. After you send the demand, I must answer it within 30 calendar days.

## **23. The law and general provisions**

---

23.1 The law of the Commonwealth of Massachusetts governs this agreement. Wherever you live, you have consumer protection rights in the law of that state. Although I chose the law of Massachusetts, that selection keeps all of those rights. No agreement between the two of us can remove them.

23.2 **This is the full agreement.** However, written statements that I made before the signature date also stay in effect. Those statements cover what the machine is, its materials, its functions, its dimensions, and its parts.

Renders and photographs show the layout and the shape, and they do not set the color. Massachusetts General Laws Chapter 93A gives you rights, and nothing here limits those rights.

23.3 **Order of precedence**, highest first: (1) a signed change order, (2) Exhibits A and A1, (3) Exhibit B for dates and payment amounts, (4) this agreement, (5) the summary of the main terms, and (6) anything else.

23.4 For each amendment to this agreement, we must both write it and sign it. If a court removes 1 part of this agreement, the other parts stay in effect. If you or I do not enforce a provision 1 time, that person keeps the right to enforce it later.

23.5 **Notices** go by email to the addresses in Section 1. A notice counts as received 2 business days after it is sent. However, a notice that cancels this agreement follows a different rule. A cancellation notice takes effect on the day the sender sends it. Either of us may also send a cancellation notice by mail or by hand.

23.6 Either of us may give this agreement to a different person. That transfer needs the other 1's written consent. Although that consent is needed, neither of us may refuse it unreasonably. I build the cabinet, I apply the finish, and I assemble the machine myself. If I want to subcontract any of that work, I must tell you before I do it. You may then refuse to let that person do the work.

23.7 Sections 6, 14, 15, 17 through 22, 23.2, and 23.8 stay in effect after this agreement ends.

23.8 Each machine that I build carries its own build number. I keep a receipt for every purchase that I make for your machine, new parts and second hand parts alike. For at least 7 years, I must keep (1) the signed agreement, (2) all the exhibits, (3) the build sheet, (4) the approval emails, (5) the test records for the second hand parts, (6) the electrical measurements, and (7) the finished photographs. When you write and ask me for 1 of those records, I must send you a copy of it.

23.9 We may sign this agreement in counterparts, and we may also sign it electronically.

23.10 If you die, or if you become unable to complete this agreement, the person who manages your affairs may complete it on the same terms. Instead of completing it, that person may cancel it. Section 6 applies at the step of the work on the day that person tells me.

---

## Exhibit A. Build specification

Quote date: \_\_\_\_\_ Build number: \_\_\_\_\_

Massachusetts sales tax registration: \_\_\_\_\_

### Options selected

| #  | Question                  | Option selected | Price    |
|----|---------------------------|-----------------|----------|
| 1  | Body material             | _____           | \$ _____ |
| 2  | Finish                    | _____           | \$ _____ |
| 3  | Console                   | _____           | \$ _____ |
| 4  | Screen                    | _____           | \$ _____ |
| 5  | Controller                | _____           | \$ _____ |
| 6  | Controller, second        | _____           | \$ _____ |
| 7  | Controller, third         | _____           | \$ _____ |
| 8  | Adapter your choices need | _____           | \$ _____ |
| 9  | Adapter your choices need | _____           | \$ _____ |
| 10 | Delivery method           | _____           | \$ _____ |

### Fixed on each machine

| Item                                                                                                                                                                                                        | Price            |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|
| Included package: legs; steel base plate of half inch thickness; controller arm; applied reproduction artwork; sticker printer in the kiosk; fittings; adhesive; edge seal; abrasives; hardware; anchor kit | \$ _____         |
| Build fee                                                                                                                                                                                                   | \$ _____         |
| Shop rate for a cancellation and for change orders                                                                                                                                                          | \$ _____ an hour |

### Totals

|                                              |                 |
|----------------------------------------------|-----------------|
| Subtotal for parts and build                 | \$ _____        |
| Delivery, freight, the crate and the package | \$ _____        |
| Setup labor on site for the hand delivery    | \$ _____        |
| Massachusetts sales tax at ____ percent      | \$ _____        |
| <b>TOTAL PRICE</b>                           | <b>\$ _____</b> |

An adapter is not a separate choice you make. A MiSTer with the 15 inch tube needs the analog video board, and a gaming PC with the 15 inch tube needs the video converter. A wired controller needs the connector, and a cordless controller needs the receiver. I list each adapter your other choices need in Exhibit A with its price, and 4.8 covers a later change to that price.

## Finish and dimensions

|                                                  |                                                                                                   |
|--------------------------------------------------|---------------------------------------------------------------------------------------------------|
| Paint color code                                 | _____                                                                                             |
| Sheen                                            | _____                                                                                             |
| Assembled dimensions                             | 51.95 in tall by 18.25 in wide by 18.25 in deep                                                   |
| Maximum assembled dimensions that I guarantee    | 53 in by 19 in by 19 in                                                                           |
| Maximum dimensions in the crate that I guarantee | ____ by ____ by ____                                                                              |
| Assembled weight                                 | about 175 lb                                                                                      |
| Crate weight for the freight delivery            | ____ lb                                                                                           |
| Interior depth                                   | 16.63 in                                                                                          |
| Head unit                                        | 36.5 in tall by 18.25 in wide by 18.25 in deep                                                    |
| Pedestal                                         | 4 legs of 1.25 in outside diameter, 14.95 in each, on a 20 in square plate of half inch A36 steel |
| Ballast plate alone                              | about 56 lb                                                                                       |
| Part tolerance                                   | plus or minus one eighth inch                                                                     |
| Assembled height tolerance                       | plus or minus one quarter inch                                                                    |
| Fastener ratings for the anchor kit              | wood stud 200 lb, masonry 200 lb, steel stud 200 lb                                               |

## New parts and warranty expiry

| Part            | Make and model  | Warranty length | Expires on | Did I open the enclosure? |
|-----------------|-----------------|-----------------|------------|---------------------------|
| Console         | _____           | _____           | _____      | yes / no                  |
| Screen          | _____           | _____           | _____      | yes / no                  |
| Sticker printer | Liene PixCut S1 | 1 year          | _____      | yes / no                  |
| Controller      | _____           | _____           | _____      | yes / no                  |
| Adapter         | _____           | _____           | _____      | yes / no                  |

## Second hand parts. You initial each line.

| Part  | Make, model and year | Condition | I tested it on | The cost I paid | Price    | Initials |
|-------|----------------------|-----------|----------------|-----------------|----------|----------|
| _____ | _____                | _____     | _____          | \$ _____        | \$ _____ | _____    |
| _____ | _____                | _____     | _____          | \$ _____        | \$ _____ | _____    |
| _____ | _____                | _____     | _____          | \$ _____        | \$ _____ | _____    |

The parts in the table above are all second hand parts. Unless the condition column says something different, I did not rebuild or recap them. These parts have the 1 year warranty in Section 15, and the new parts have the same term. A second hand television also has the picture guarantee in 18.1.

**Exhibit A1** is the dated drawings with dimensions and the reference photographs. We both sign Exhibit A1.

## Exhibit B. Payments and dates

|                                                         |             |
|---------------------------------------------------------|-------------|
| Date signed                                             | _____       |
| The free cancellation period closes on                  | _____       |
| First payment cleared on                                | _____       |
| Build period                                            | _____ weeks |
| <b>Agreed delivery date</b>                             | _____       |
| <b>Outside date</b>                                     | _____       |
| The scarce part that the longer date applies to, if any | _____       |

| # | What                                  | When                                                                                               | Amount          | Paid on |
|---|---------------------------------------|----------------------------------------------------------------------------------------------------|-----------------|---------|
| 1 | Half of the total price               | When we both sign                                                                                  | \$ _____        | _____   |
| 2 | Half of the total price plus delivery | When I ship the machine and send you the tracking number. On a hand delivery, on the day I deliver | \$ _____        | _____   |
|   | <b>Total</b>                          |                                                                                                    | <b>\$ _____</b> |         |

## Signatures

We both sign below. When we sign, we agree to each term above, and to Exhibits A, A1 and B.

### Seller

Signature: \_\_\_\_\_

Printed name: Andrew J Fiore, who does business as anjafio

Date: \_\_\_\_\_

### Buyer

Signature: \_\_\_\_\_

Printed name: \_\_\_\_\_

Date: \_\_\_\_\_

Delivery address: \_\_\_\_\_

Email: \_\_\_\_\_ Phone: \_\_\_\_\_

**Your acknowledgments. Please initial each row.**

|                                                                                                                                                                                                                                                                       | Initials |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|
| I have read Section 17. I understand this machine can fall over. I must anchor the machine to the wall before I use it. I must send a photograph of the anchored machine within 14 days                                                                               | _____    |
| I have read Section 15. I understand which parts are second hand. I understand that they have the same 1 year guarantee as the new parts                                                                                                                              | _____    |
| I have read Section 18. I understand the second hand television keeps dangerous electrical energy. I must not open the television                                                                                                                                     | _____    |
| I have read Section 18. I understand the finished machine is not a listed electrical assembly                                                                                                                                                                         | _____    |
| I have read Sections 3 and 19. I understand this machine is an unlicensed reproduction and not a Nintendo product. Nintendo and The Pokemon Company do not license this machine, do not endorse it, and have no affiliation with it. I buy it for my own personal use | _____    |
| I have read Section 12. I understand what my delivery method needs from me. The freight delivery is curbside only. The crate needs 2 people                                                                                                                           | _____    |